

STATE OF NEW YORK

5444--A

2025-2026 Regular Sessions

IN SENATE

February 21, 2025

Introduced by Sen. PERSAUD -- read twice and ordered printed, and when printed to be committed to the Committee on Education -- committee discharged and said bill committed to the Committee on Higher Education -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the education law, in relation to protecting rights of pregnant students, parenting students, and students with pregnancy-related conditions in schools and education

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. Short title. This act shall be known and may be cited as the "protecting rights of pregnant students, parenting students, and students with pregnancy-related conditions in schools and education act".

§ 2. Title 7 of the education law is amended by adding a new article 129-C to read as follows:

ARTICLE 129-C

PROTECTIONS FOR PREGNANT STUDENTS,

PARENTING STUDENTS, AND STUDENTS WITH PREGNANCY-RELATED CONDITIONS

Section 6450. Definitions.

6450-a. Rights and protections.

6450-b. Designation of liaison officer.

6450-c. Dissemination of information.

§ 6450. Definitions. As used in this article, the following terms shall have the following meanings:

1. "Institution" shall mean any college or university chartered by the regents or incorporated by special act of the legislature that maintains a campus in New York.

2. "Parenting student" shall have the same meaning as "familial status" as defined in subdivision twenty-six of section two hundred ninety-two of the executive law.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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1 3. "Pregnancy-related condition" shall include but not be limited to
2 childbirth, termination of pregnancy, lactation, and medical conditions
3 or recovery related to any of these conditions.

4 4. "Reasonable accommodation" shall mean actions taken which permit a
5 student, prospective student, parenting student or student with a preg-
6 nancy-related condition, to perform in a reasonable manner the activ-
7 ities involved in obtaining a degree from an educational institution or
8 participating in student life and include, but are not limited to,
9 provision of an accessible learning environment, acquisition or modifi-
10 cation of equipment, support services for pregnant students, parenting
11 students or students with a pregnancy-related condition, and modified
12 learning or testing schedule; provided, however, that such actions do
13 not impose an undue hardship on the institution from which such actions
14 are requested.

15 § 6450-a. Rights and protections. 1. An institution may not, solely
16 because of a student's status as a pregnant or parenting student or due
17 to issues related to a pregnancy-related condition, do or require a
18 student to do any of the following:

19 a. Take leave of absence or withdraw from the student's degree or
20 certificate program;

21 b. Limit the student's studies;

22 c. Participate in an alternative program;

23 d. Change the student's major, degree, or certificate program;

24 e. Terminate or reduce athletic, merit, or needs-based scholarships;
25 or

26 f. Refrain from joining or cease participating in any course, activ-
27 ity, or program at the institution.

28 2. An institution shall not:

29 a. Demand or require any student to:

30 (i) Undergo tests for pregnancy; or

31 (ii) Disclose the results of tests for pregnancy or pregnancy-related
32 conditions;

33 b. Demand or require any student's healthcare provider to:

34 (i) Disclose the results of tests related to pregnancy or pregnancy-
35 related conditions; or

36 (ii) Disclose the status or condition of any student in regard to
37 pregnancy-related conditions; or

38 c. Exclude a student from classes, a school program, or school activ-
39 ity for exercising the rights under this subdivision. Provided, howev-
40 er, that this subdivision shall not preclude staff from offering to
41 support students who wish to seek appropriate medical and support
42 services and providing referrals to such services.

43 3. An institution of higher education shall provide reasonable accom-
44 modations to pregnant students, parenting students, and students with
45 pregnancy-related conditions including accommodations that:

46 a. Would be provided to a student with a temporary medical condition;
47 or

48 b. Are related to the health and safety of the student and the
49 student's child, such as allowing the student to maintain a safe
50 distance from substances, areas, and activities known to be hazardous to
51 pregnant persons, embryos or fetuses.

52 4. An institution of higher education shall, for reasons related to a
53 student's pregnancy, childbirth, or any resulting medical status or
54 condition:

55 a. Excuse the student's absence;

56 b. Allow the student to make up missed assignments or assessments;

1 c. Allow the student additional time to complete assignments in the
2 same manner as the institution allows for a student with a temporary
3 medical condition;

4 d. Provide the student with access to instructional materials and
5 video recordings of lectures for classes for which the student has an
6 excused absence under this subdivision to the same extent that instruc-
7 tional materials and video recordings of lectures are made available to
8 any other student with an excused absence; and

9 e. Provide a lactation space to parenting students needing to express
10 breast milk.

11 5. Each institution shall adopt a policy for students on pregnancy,
12 pregnancy-related conditions and parenting discrimination. The policy
13 shall:

14 a. Include the contact information for the employee or office of the
15 institution that is the designated point of contact for a student
16 requesting each protection or accommodation pursuant to section sixty-
17 four hundred fifty-b of this article as well as the Title IX Coordina-
18 tor;

19 b. Be posted in an easily accessible, straightforward format on the
20 institution's website; and

21 c. Be made available annually to faculty, staff, and employees of the
22 institution.

23 6. If an institution of higher education provides early registration
24 for courses or programs at the institution for any group of students,
25 the institution shall provide early registration for those courses or
26 programs for pregnant students, parenting students, and students with
27 pregnancy-related conditions in the same manner.

28 § 6450-b. Designation of liaison officer. 1. Each institution shall
29 designate at least one employee of the institution to act as a liaison
30 officer for current or incoming students at the institution who are
31 pregnant, parenting, or have a pregnancy-related condition.

32 2. The liaison officer shall provide information to students regarding
33 support services and other resources available to students at the insti-
34 tution, including:

35 a. Resources to access, including:

36 (i) Medical and behavioral health coverage and services; and

37 (ii) Public benefit programs, including programs related to food secu-
38 rity, affordable housing, and housing subsidies;

39 b. Parenting and child care resources;

40 c. Employment assistance;

41 d. Transportation assistance;

42 e. Student academic success strategies;

43 f. Rights of pregnant students, parenting students, and students with
44 a pregnancy-related condition pursuant to section sixty-four hundred
45 fifty-a of this article; and

46 g. Any other resources developed by the institution to assist students
47 who are pregnant, parenting, or have a pregnancy-related condition.

48 § 6450-c. Dissemination of information. 1. Each institution shall
49 disseminate the information required pursuant to subdivision two of this
50 section in the manner provided in subdivision three of this section to
51 prospective and enrolled students, including those attending or planning
52 to attend less than full time.

53 2. The information to be disseminated pursuant to this section shall
54 include but not be limited to:

55 a. Information on the resources available to pregnant students,
56 parenting students, or students with a pregnancy-related condition,

1 including the resources listed in subdivision two of section sixty-four
2 hundred fifty-b of this article;

3 b. Information on how to contact the liaison officer required pursuant
4 to section sixty-four hundred fifty-b of this article;

5 c. Information on how to file a complaint with the federal department
6 of education, if a student believes there was a violation by the insti-
7 tution of title IX of the Education Amendments of 1972 (20 U.S.C. 1681
8 et seq.) on account of such student's determination to carry a pregnancy
9 to term; and

10 d. Information on how to file a complaint with the department of
11 education if a student believes there was a violation by the institution
12 of this article.

13 3. Information required to be disseminated pursuant to this section
14 shall be disseminated:

15 a. In an email to each enrolled student at the start of each period of
16 study during an academic year;

17 b. In student handbooks, if any;

18 c. At each orientation for enrolled students; and

19 d. At student health or counseling centers, if any.

20 § 3. Section 355 of the education law is amended by adding a new
21 subdivision 22 to read as follows:

22 22. The state university trustees shall adopt rules as necessary to
23 administer article one hundred twenty-nine-C of this chapter. Such rules
24 shall establish minimum periods of time for which pregnant students,
25 parenting students, or students with a pregnancy-related condition must
26 be given a leave of absence under paragraph a of subdivision one of
27 section sixty-four hundred fifty-a of this chapter. In establishing such
28 periods of time, the trustees shall consider the maximum amount of time
29 a student may be absent without significantly interfering with the
30 student's ability to complete their degree or certificate program.

31 § 4. Section 6306 of the education law is amended by adding a new
32 subdivision 12 to read as follows:

33 12. The board of trustees of each community college shall adopt rules
34 as necessary to administer article one hundred twenty-nine-C of this
35 chapter. Such rules shall establish minimum periods of time for which a
36 pregnant student, parenting student, or student with a pregnancy-related
37 condition must be given a leave of absence under paragraph a of subdivi-
38 sion one of section sixty-four hundred fifty-a of this chapter. In
39 establishing such periods of time, the board shall consider the maximum
40 amount of time a student may be absent without significantly interfering
41 with the student's ability to complete the student's degree or certif-
42 icate program.

43 § 5. This act shall take effect on the one hundred eightieth day after
44 it shall have become a law.